

1.

CASE #	CASE NAME	HEARING NAME
CVRI2200117	CHAVEZ vs BELTRAN	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling:

Hearing is vacated. On 7/16/26, the court provided a briefing schedule for filing of motions, to date no motions have been filed.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501012	BURKE vs GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Plaintiff's Motion for Attorney's Fees is granted in the amount of \$25,250.50 and costs in the amount of \$1,324.71, for a total of \$26,575.21.

Under Civ. Code § 1794(d), if the buyer prevails in an action under the Song-Beverly Act, the buyer shall be allowed to recover "a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794(d).) There is no dispute that Plaintiff is the prevailing party and is entitled to reasonable attorney fees. The only question is the amount of the award.

In determining the reasonable amount, the court first determines a lodestar figure (time reasonably spent multiplied by a reasonable hourly rate) and may then adjust. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131–32.) Attorney fee awards should be fully compensatory. (*Id.* at 1133.) However, a fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether. (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635.) The reasonableness of attorney fees is within the sound discretion of the trial court. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.)

"A prevailing buyer has the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (*Morris v. Hyundai Motor Am.* (2019) 41 Cal.App.5th 24, 34 [internal quotation marks & quotation omitted].) If the party seeking fees fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, "then the court must take this into account and award attorney fees in a lesser amount." (*Id.*)

As to litigation costs, under CCP §§ 1032 and 1033.5, a prevailing party is entitled as a matter of right to recover costs. Section 1033.5(a) lists items expressly allowable; section 1033.5(b) lists items expressly non-allowable; any other items may be allowed or denied in the court's discretion under section 1033.5(c)(4). A verified memorandum of